



Policy and Procedures

Alcohol, Smoking and Drugs Policy

PURPOSE

Scouts Victoria has a responsibility to protect the health and wellbeing of its Members. The purpose of this policy is to provide clear and unambiguous guidance to leaders in dealing with questions of smoking and alcohol consumption.

CONTEXT

All Victorian Government schools have, since 2009, been required to provide a 'smoke-free' environment for all members of the school community on school premises and during school sponsored activities.¹ Research shows that smoke-free policies in schools are most effective when they involve all members of the school ie including the adults. Under Victorian legislation, smoking is prohibited in all enclosed workplaces and in motor vehicles where a person under the age of 18 years is present. Smoking is also restricted in public places where members of the public gather and may be exposed to second-hand tobacco smoke, including playgrounds, beaches, sporting grounds and all outdoor dining areas where food is available for consumption (including at organised outdoor community events). It is also illegal to sell or supply tobacco products to anyone under 18 years of age.²

The Scouts Australia Policy and Rules 2017 prescribes specific policies and rules that all Members must comply with respect to smoking, alcohol and drugs, and specifically states that Branches shall regulate the consumption of alcohol at Association activities and on Association property, including prescribing rules for the safe consumption of alcohol by adults at Scouting functions.

As part of the delivery of the Scouting program, section leaders are expected to work with the respective section's youth council to provide age-appropriate factual information on smoking, alcohol and illegal drugs and support those Members feeling under pressure to smoke or drink.

Scouts Victoria recognizes that smoking is a complex health issue and quitting smoking is a staged process that varies for each individual. Members who smoke should be supported in a positive way and with understanding of the effects and difficulties they may face in quitting. 'Quit Victoria', a program of the Cancer Council of Victoria, is recommended as a place of referral to Members seeking advice on smoking as well as units seeking health education in smoking.

SCOPE

This policy applies to all Members, supporters and formations of The Scout Association of Australia, Victorian Branch ('Scouts Victoria') when undertaking Scouting activities.

POLICY STATEMENT

Smoking

It is Scouts Victoria policy that Scouting be undertaken in a 'smoke free' environment and, consequently, smoking is not permitted on Scouts property nor during Scouting events undertaken elsewhere, other than:

¹ Reference: Minister for Education's Order of 1 July 2009 as quoted in 'Tobacco Prevention and Management Guidelines for Victorian Schools'.

² See the Tobacco Act 1987 (Vic).

- (i) where the Chief Commissioner has made a temporary exemption for adults to smoke; or
- (ii) where a property manager of a campsite has, with the agreement of the relevant campsite committee, agreed to set aside a specific area for adults to smoke.

Regardless of these exemptions, **Venturers who are over the age of 18 are not permitted to smoke at any Scouting event.**

For the purposes of this Policy, smoking includes the use of e-cigarettes (vapes).

Any exemption granted by the Chief Commissioner (or their delegate) includes a condition that the Adult Member or Leader in charge of the Scouting Event must set aside a specific and clearly identified outdoor area for smokers which is only available for adults and is not in the vicinity of where youth are likely to be.

Where a property manager has determined, with the agreement of the relevant campsite committee, to set aside an area for smokers at a campsite, they are responsible for setting aside a clearly identified outside area which is only available for adults and is not in the vicinity of where youth are likely to be.

Consumption of Alcohol

It is Scouts Victoria policy that:

- Alcohol cannot be consumed by any Youth Member at any time while the Youth Member is on Scouts Victoria property or on location at a Scouting Event, including during bump in/bump out activities. **For these purposes, a Youth Member includes a Venturer who is over the age of 18.**
- Alcohol cannot be consumed by any Adult Member at any time while the Adult Member is on Scouts Victoria property or on location at a Scouting Event, including during bump in/bump out activities, **except as expressly provided in this Policy – see below.**

When alcohol may be served & consumed - Chief Commissioner's Exemption

Alcohol may be served and consumed at a Scouting Event where the Chief Commissioner (or their delegate) grants a written exemption from this requirement for the event and all conditions of that exemption are complied with at all times³. Any exemption granted by the Chief Commissioner (or their delegate) to allow consumption of alcohol at a Scouting Event includes conditions that the Adult Member or Leader in charge of the Scouting Event must set aside a specific and clearly identified area, and actively monitor:

- compliance with liquor licensing rules, including the requirement (if alcohol is to be sold) that the venue is appropriately licensed and those serving alcohol hold a current "Responsible Serving of Alcohol" certificate; and
- compliance with any special conditions applying to or imposed by the venue hosting the Scouting Event; and
- compliance with any additional conditions considered appropriate by the Chief Commissioner (or their delegate).

When alcohol may be served & consumed – other circumstances

Alcohol may be served and consumed at a Scouting Event:

- where **only** Adult Members are present; **or**
- where Adult Members and Youth Members are present, provided that:
 - each Youth Member is accompanied by or under the direct supervision of a parent or guardian, and
 - the Youth Member's parents or guardians have been given prior notice that alcohol will be served; and
 - the Youth Member does not consume or serve alcohol; **and**
- in each case, the Event complies with all relevant legal requirements in relation to service of alcohol.

Illegal Drugs

The presence and use of illegal drugs at all Scouting Events and on all Scouts Victoria property is prohibited.

Hall & campsite hire

Where an outside organization hires a Scouts Victoria property and seeks to serve and/or sell alcohol and/or allow smoking, the local formation may, if they wish, provide such approval, provided that:

- if the property is leased by Scouts Victoria, the terms of the lease do not specifically prohibit smoking and/or the sale and service of alcohol on the property (if they do, smoking is not permitted and alcohol may not be sold or served on the property in any circumstances); and
- a permit to sell/serve alcohol on the property has been obtained; and
- all other relevant legal requirements are met. This includes ensuring that smokers only smoke in an appropriate outdoor area; and that all other liquor licensing requirements are met.

RESPONSIBILITIES

Executive Manager

- ☐ Ensure that this Policy is made generally available to Members and placed on the Scouts Victoria website.

Chief Commissioner

- On request, may provide temporary exemptions for Adults to smoke and/or consume alcohol on Scouts Victoria property or on a Scouting Event.

Person in Charge of a Scouting Event

- ☐ Ensure that all participants are aware of, and adhere to, this Policy.
- ☐ Where the Chief Commissioner has approved an exemption for Adults to smoke and/or consume alcohol on Scouts Victoria property or at a Scouting Event, ensure that those Members legally permitted to smoke or drink alcohol and who choose to do so, do so in a manner that is safe and consistent with this policy and its procedures.

Adult Members

Take personal responsibility for their smoking and consumption of alcohol and ensure they adhere to this Policy.

DEFINITIONS

Member: As defined by 'Policy 3.1 Members' of Policies and Rules 2017 (National Council of the Scout Association).

Property Manager: For Scout Association properties, the Property Manager is the person designated by the Chief Commissioner to be the manager of a property, as listed in the Scouts Victoria extranet listing of Scouts Victoria properties.

Scouting Event means any event where Youth Members or Adult Members are present in their capacity as Members of Scouts Victoria, whether the event takes place on Scouting property or elsewhere.

Smoking: The term smoking includes the use of all tobacco or nicotine products that involve the inhalation of smoke including cigarettes, cigars, "pipes", roll-your-owns, and using e-cigarettes (vaping).

Supporter: As defined by 'Policy 3.2 Members' of Policies and Rules 2017 (National Council of the Scout Association).

Youth Member: a Member under the age of 18 years.

GOVERNANCE

Supporting procedures	
Supporting Documents	❑ 'Quit Victoria' www.quit.org.au ❑ www2.health.vic.gov.au/public-health/tobacco-reform ❑ www.betterhealth.vic.gov.au/health/HealthyLiving/victorias-tobacco-laws
Associated policies	Policy and Rules - The Scout Association of Australia
Related legislation	Liquor Control Reform Act 1998 (Vic) Tobacco Act 1987 (Vic)
Endorsed by	Chief Commissioner/General Manager
Authorised by	Branch Executive Committee 24 September 2024
Policy owner	Chief Commissioner, Scouts Victoria
Date effective	24 September 2024
Review date	24 September 2027 (3 years from effective date)
Version	2.0

VERSION CONTROL HISTORY

Version number	Date	Changes made
1	February 2021	New policy
2.0	September 2024	Reviewed and amended
2.1	January 2025	Minor amendments to clarify situations in which alcohol may be served/consumed at Scouting events (approved by Governance Committee).